

DEMURRER

TENTATIVE RULING: The demurrer is SUSTAINED. Plaintiff is granted 10 Court days' leave, from Notice of Entry of Order, to file a Second Amended Complaint. This leave is limited, however, to making amendments aimed at properly substituting Rene Trejo, Elva Trejo, and Rene Trejo Jr. for fictitiously named Doe Defendants.⁶ Moving Defendants shall serve and file Notice of Entry of Order. The August 4, 2026, Case Management Conference is continued to October 8, 2026, at 8:30 am in Department A.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendants Rene Trejo, Elva Trejo, and Rene Trejo Jr. (collectively Defendants) demur, pursuant to Code of Civil Procedure 430.10, subdivisions (e) and (f), to Plaintiff's First Amended Complaint (FAC). Defendants argue that the FAC alleges facts that demonstrate that the claims asserted against them are barred by the statute of limitations.

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then "plead around" the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781 (*Geneva Towers*).)

The original Complaint, filed August 27, 2025, purported to assert a cause of action for general negligence involving a motor vehicle against CSAA Insurance Group and Does 1 through 4. It did not name any of the moving Defendants. On January 14, 2026, Plaintiff filed the Amended Complaint asserting a cause of action for general negligence involving a motor vehicle against each of the moving Defendants and Does 1 through 3, but not against CSAA Insurance Group. The Amended Complaint (like the original Complaint) contains an allegation that "date

⁶ Any other amendment requires additional leave of Court.

of accident [was] 9/22/2023.” (See *id.* at ¶ 15.) Plaintiff alleges personal injury as well as personal property damages. (See *id.* at ¶ 14.)

The limitations period for an action for personal injury damages is two years. (See Code Civ. Proc. § 335.1.) This period applies to motor vehicle claims. (See *Litwin v. Estate of Formela* (2010) 186 Cal.App.4th 607, 618-619 [applying statute and holding, “complaint filed . . . for claims arising from an automobile accident . . . was untimely because it was filed more than two years after the accident”].) “Statutes of limitation are favored by the law . . .” (*Kunstman v. Mirizzi* (1965) 234 Cal.App.2d 753, 757.)

Because the Amended Complaint was filed more than two years after the alleged date of the accident, the Court finds that the Amended Complaint clearly discloses facts that show that the claim against Defendants is apparently barred by the Statute of Limitations.

In opposing the Motion, Plaintiff argues that “[t]he First Amended Complaint merely substitutes the true names of Defendants for previously designated Doe Defendants in the original Complaint filed on August 27, 2025.” (Opposition at 2:1-2.) He further contends that “[a]t the time the original Complaint was filed, Plaintiff was genuinely ignorant of the identities of the individuals and entities who may have been operating the subject vehicle and of legal ownership of that vehicle.” (*Id.* at 2:5-7.)

“The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed. [Citations] A recognized exception to the general rule is the substitution under [Code of Civil Procedure section 474] of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. [Citations.] If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed. [Citation.]” (*Woo v. Super. Ct.* (1999) 75 Cal.App.4th 169, 176 (*Woo*).)

As in *Woo*, Plaintiff here “made no apparent attempt to satisfy this procedural requirement.” (*Woo, supra*, 75 Cal.App.4th at 176.) The Amended Complaint adds each of the Defendants but does not identify them as substitutes for previously named fictitious defendants. (See *ibid.*) Rather, the attachment to the Amended Complaint expressly states that, by it, Plaintiff seeks to “remove CSAA Insurance Group as the sole defendant and replace it with Rene Trejo, Elva Trejo, and Rene Trejo Jr.” Moreover, while the original Complaint names four Doe Defendants, the Amended Complaint, in addition to the three newly named Defendants, continues to name three Doe Defendants. Finally, as in *Woo*, Plaintiff served each of the Defendants in their individual names, and not as a defendant previously served under a fictitious name. (See *ibid.*)

Based on the foregoing, the demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) “[T]he courts of this state have considered noncompliance with the party substitution requirements of section 474 as a procedural defect that could be cured and have been lenient in permitting rectification of the defect.” (*Woo, supra*, 75 Cal.App.4th at 177.)

Defendants further contend that “[t]he facts underlying the incident including the identity of the driver and vehicle owner were necessarily known or readily ascertainable at the time of the original complaint.” (Support Memo at 4:22-24.) “A further and nonprocedural requirement for application of the section 474 relation-back doctrine is that [plaintiff] must have been genuinely ignorant of [newly named defendant’s] identity at the time she filed her original complaint.” (*Woo, supra*, 75 Cal.App.4th at 177.)

The Court finds nothing in the allegations of either the Complaint or the Amended Complaint that clearly disclose either: (1) that Plaintiff knew the identity of the Defendants, or any of them, as of the filing of the original Complaint; or (2) circumstances from which such knowledge was readily ascertainable.

Based on the foregoing, the Court sustains the demurrer with leave to amend.

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Robert Breed v. Adventist Health St. Helena et al

26CV000093

[1] DEFENDANT’S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION
SUBPOENAS

TENTATIVE RULING: The motion is GRANTED IN PART. Each of the Employers (defined below) is ordered to produce to Defendant Adventist Health St. Helena (the Hospital), within 21 calendar days of Notice of Entry of the instant ruling, the following documents:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed’s employment.

The Hospital’s request for an award of monetary sanctions is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.